

1 ENGROSSED HOUSE
2 BILL NO. 4142

By: Manger of the House

and

Hines of the Senate

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7 An Act relating to crimes and punishments; amending
8 21 O.S. 2021, Sections 1767.1, as amended by Section
9 459, Chapter 486, O.S.L. 2025, and 1767.3 (21 O.S.
10 Supp. 2025, Section 1767.1), which relate to the
11 unlawful use of bombs or explosive devices and
12 related definitions; modifying elements of certain
13 crimes; providing construing provision; updating
14 certain defined terms; and providing an effective
15 date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 21 O.S. 2021, Section 1767.1, as
18 amended by Section 459, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
19 2025, Section 1767.1), is amended to read as follows:

20 Section 1767.1. A. Any person who shall willfully or
21 maliciously commit any of the following acts shall be deemed guilty
22 of a Class D1 felony offense:

23 1. Place or conspire to place in, upon, under, against or near
24 to any building, car, truck, aircraft, motor or other vehicle,
vessel, railroad, railway car, or locomotive or structure, any
explosive or incendiary device ~~with unlawful intent to destroy,~~

1 ~~throw down, or injure~~ capable of causing destruction, in whole or in
2 part, ~~such of said~~ property, ~~or conspire, aid, counsel or procure~~
3 ~~the destruction of any building, public or private, or any car,~~
4 ~~truck, aircraft, motor or other vehicle, vessel, railroad, railway~~
5 ~~car, or locomotive or structure; or~~

6 2. Place or conspire to place in, upon, under, against or near
7 to any building, car, truck, aircraft, motor or other vehicle,
8 vessel, railroad, railway car, or locomotive or structure, any
9 explosive or incendiary device ~~with intent to destroy, throw down,~~
10 ~~or injure~~ capable of causing destruction or injury, in whole or in
11 part, under circumstances that, if ~~such intent~~ it were ~~accomplished~~
12 to function, human life or safety would be endangered thereby; or

13 3. ~~By the explosion~~ Use of any explosive or ~~the igniting of any~~
14 incendiary ~~device~~ to destroy, throw down, or injure any property of
15 another person, or cause injury to another person, in whole or in
16 part; or

17 4. Manufacture, sell, transport, or possess or conspire to
18 manufacture, sell, transport, or possess any explosive, the
19 component parts ~~of an explosive~~ or ingredients of any homemade
20 explosive, an incendiary ~~device~~, or simulated bomb ~~with knowledge or~~
21 ~~intent that it or they will be used~~ when such item or materials are
22 designed, modified, assembled, or possessed in a manner that
23 demonstrates preparation for illegal use, or possessed in a
24 combination and under circumstances indicating intent or readiness

1 to unlawfully kill, injure or intimidate any person, or unlawfully
2 damage any real or personal property; or

3 5. Place or conspire to place in, upon, under, against or near
4 to any building, car, truck, aircraft, motor or other vehicle,
5 vessel, railroad, railway car, or locomotive or structure, any foul,
6 poisonous, offensive or injurious substance or compound, explosive,
7 incendiary ~~device~~, or simulated bomb ~~with intent~~ to wrongfully
8 injure, molest or coerce another person or to injure or damage the
9 property of another person; or

10 6. Injure, damage or attempt to damage by an explosive or
11 incendiary ~~device~~ any person, persons, or property, whether real or
12 personal, in whole or in part; or

13 7. Make any threat or convey information known to be false,
14 concerning an attempt or alleged attempt to kill, injure or
15 intimidate any person or unlawfully damage any real or personal
16 property by means of an explosive, incendiary ~~device~~, or simulated
17 bomb; or

18 8. Manufacture, sell, deliver, mail or send an explosive,
19 incendiary ~~device~~, or simulated bomb to another person; or

20 9. While committing or attempting to commit any felony,
21 possess, display, or threaten to use any explosive, incendiary
22 ~~device~~, or simulated bomb.

23 B. Nothing contained herein shall be construed to apply to, or
24 repeal any laws pertaining to, the acts of mischief of juveniles

1 involving no injurious firecrackers or devices commonly called
2 "stink bombs".

3 C. Nothing contained herein shall be construed to prohibit the
4 lawful manufacture, sale, transport, possession, or use of
5 explosives, explosive materials, incendiaries, simulated bombs,
6 their components, or ingredients for a lawful purpose and in
7 compliance with applicable state and federal law.

8 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1767.3, is
9 amended to read as follows:

10 Section 1767.3. As used in Section 1767.1 of this title:

11 1. "Explosive" or "explosives" means any chemical compound,
12 mixture or device, the primary or common purpose of which is to
13 function by explosion or which, although not its primary or common
14 purpose, has been modified, manipulated, altered, enhanced, or
15 otherwise caused to function by explosion (that is, with substantial
16 instantaneous release of gas, heat, debris, or concussive pressure
17 or force, or any combination of such actions), unless such compound,
18 mixture or device is otherwise specifically classified by the United
19 States Department of Transportation. The term "explosive" or
20 "explosives" shall include, but not be limited to, gunpowder,
21 dynamite, any bomb, all materials as defined in paragraphs 1 and 2
22 of Section 121.1 of Title 63 of the Oklahoma Statutes, and all
23 material which is classified as explosives by the United States
24 Department of Transportation;

1 2. "Person" means any individual or individuals, firm,
2 copartnership, corporation, company, association, joint stock
3 association, and includes any trustee, receiver, assignee or
4 personal representative thereof;

5 3. "Incendiary ~~device~~" means any chemical compound, ~~mixture or~~
6 ~~device~~ accelerant, material, or combination thereof, the primary
7 purpose or effect of which is to ignite, initiate combustion, or
8 promote the spread of fire, whether through direct ignition,
9 chemical reaction, or by enhancing the combustibility of other
10 materials. This includes, but is not limited to, devices designed
11 to ignite on impact or as a result of chemical reaction such as a,
12 including "Molotov ~~cocktail~~ cocktails" or "firebomb" which is
13 ignited on impact, causing a mechanical reaction of the container's
14 breaking and permitting the inflammable matter to spread or splatter
15 and is ignited from the burning wick or hypergolic reaction of
16 chemicals "firebombs" and materials deployed without a container,
17 such as poured accelerants intended to cause fire or destruction;

18 4. "Component parts" means separate parts which if assembled
19 would form an explosive ~~device~~. Component parts of an "incendiary
20 device" shall consist of an inflammable material, a breakable
21 container and a source of ignition; and

22 5. "Simulated bomb" means any device or object that by its
23 design, construction, content, or characteristics appears to be, or
24 to contain, an incendiary device, explosive, or explosives, as

1 defined in this section, but is, in fact, an inoperative facsimile
2 or imitation of such a device or explosive.

3 SECTION 3. This act shall become effective November 1, 2026.

4 Passed the House of Representatives the 5th day of March, 2026.

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7 Presiding Officer of the House
8 of Representatives

9 Passed the Senate the _____ day of _____, 2026.

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12 Presiding Officer of the Senate
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